

would exceed the sum of ten shillings, a purchaser shall not, by reason only of the transfer bearing a ten-shilling stamp, whether adjudicated or not, be deemed to have or to have had notice of any trust, or that the transfer was made for effectuating the appointment of a new trustee.

(2) This section applies to transfers made before as well as after the commencement of this Act.

Amendment
of section 42
of the Act of
1881.

14. The words "and being a woman is also unmarried" in subsection one of section forty-two of the Act of 1881 are hereby repealed.

Amendment
of the Third
Schedule to the
Act of 1881.

15. The words "or for giving effect to special arrangements" are hereby substituted for the words "or other matter" at the foot of Part I. of the Third Schedule to the Act of 1881.

Short title,
commence-
ment, and
construction.

16.—(1) This Act may be cited as the Conveyancing Act, 1911.

(2) This Act shall come into operation on the first day of January one thousand nine hundred and twelve.

(3) This Act and the Conveyancing Acts, 1881 to 1892, shall be construed together, and may be cited together as the Conveyancing Acts, 1881 to 1911.

44 & 45 Vict.
c. 41.

(4) In this Act the Conveyancing and Law of Property Act, 1881, is referred to as the Act of 1881, and that Act may be cited as the Conveyancing Act, 1881.

CHAPTER 38.

An Act to amend the Money-lenders Act, 1900.
[16th December 1911.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Rights of bonâ
fide holders for
value, &c.,
under contracts
with money-
lenders.

1.—(1) Notwithstanding anything in section two of the Money-lenders Act, 1900—

(a) any agreement with, or security taken by, a money-lender shall be, and shall be deemed always to have been, valid in favour of any bonâ fide assignee or holder for value without notice of any defect due to the operation of that section, and of any person deriving title under him ; and

(b) any payment or transfer of money or property made bonâ fide by any person, whether acting in a fiduciary

capacity or otherwise, on the faith of the validity of any such agreement or security, without notice of any such defect, shall, in favour of that person, be, and be deemed always to have been, as valid as it would have been if the agreement or security had been valid ;

but in either such case the money-lender shall be liable to indemnify the borrower or any other person who is prejudiced by virtue of this enactment, and nothing in this enactment shall render valid an agreement or security in favour of an assignee or holder for value who is himself a money-lender.

(2) A person shall not be deemed to have had notice of a defect in an agreement or security by reason only that a search in the register established under the Money-lenders Act, 1900, would have disclosed the defect or shown that the agreement or security was effected with a money-lender ; and, for the purposes of this Act and the Money-lenders Act, 1900, the provisions of section three of the Conveyancing Act, 1882, shall apply and be deemed always to have applied as if the expression " purchaser " included a person making any such payment or transfer as aforesaid. 63 & 64 Vict. c. 51. 45 & 46 Vict. c. 39.

(3) Nothing in this section shall render valid for any purpose any agreement, security, or other transaction which would, apart from section two of the Money-lenders Act, 1900, have been void or unenforceable, nor any agreement or security which has, before the commencement of this Act, been declared void by a court of competent jurisdiction.

2.—(1) No person shall be registered as a money-lender under any name including the word " bank," or under any name implying that he carries on banking business ; and, where any money-lender is registered under any such name, the name shall be removed from the register and a notification to that effect sent to the money-lender. Prohibition on money-lenders being registered as bankers.

(2) If a money-lender, in the course of carrying on the money-lending business, issues or publishes, or causes to be issued or published, any circular, notice, advertisement, letter, account, or statement of any kind containing expressions which might reasonably be held to imply that he carries on banking business, he shall be liable on summary conviction to the like penalties as if he had failed to comply with section two of the Money-lenders Act, 1900.

3. This Act may be cited as the Money-lenders Act, 1911, and shall be construed as one with the Money-lenders Act, 1900, and that Act and this Act may be cited together as the Money-lenders Acts, 1900 and 1911. Short title and construction.